

Exam number: _____

Civil Procedure—Midterm Exam

Fall 2025

Prof. Andrew Lanham

University of Houston Law Center

Instructions

This exam is 8 pages long (including this instructions page). Please make sure that you have all pages. Please write your exam number at the top of this page, and turn in this packet at the end of the exam.

You should also have been provided with a copy of the excerpted Federal Rules of Civil Procedure. Please write your exam number at the top of the front page of that packet, and turn it in at the end of the exam as well.

The questions for this exam consist of two parts: Part I consists of ten (10) multiple choice questions, and Part II consists of one (1) essay question. The essay has a word limit of **800 words**, and exceeding that word limit will negatively impact a score. The available point value for each question is indicated (in brackets), and that should give you a rough guide as to how to allocate your time—the total points amount to 40. You have one hour to complete the exam and submit your answers using the EBB software.

This exam is closed-book and closed-note (with the exception, of course, that you may use the copy of the excerpted FRCP that you have been provided). EBB will be set to “closed,” meaning that you may not access electronic materials on your computer or the internet.

For the essay question, be sure to answer the question that is asked, applying any relevant law that we have covered to the fact pattern. It is possible, though, that not every fact described in the fact pattern will be relevant to answering a question that you are asked—part of your job in answering the exam is to sort the relevant facts from the irrelevant ones, and to say something about the relevant facts. As a result, I recommend that you take some time to read the question and plan your answer before you begin to write that answer. For the purposes of this exam, any facts that are stated and any representations that are made about the law of a jurisdiction are as given. If you need additional facts to answer a question, indicate what those facts are and why you need to know them. In addition, be sure to state any assumptions that you are making. Aim to be clear and concise, but make sure to deal with all of the issues that are raised, even if you believe that the disposition of one of them is controlling. Clear writing and good organization will, of course, help me to understand the substance of your answers.

Please remember that the UHLC Honor Code is in effect. In particular, your answers must be entirely your own work; you may not discuss the exam with anyone, either while taking it or thereafter until everyone has taken the exam; and you may not use any large language AI model to draft any portion of your exam. By submitting your exam answers, you acknowledge these instructions and certify that you have complied with all limitations on collaboration.

Good luck!

Part I. Multiple Choice Questions (20 points total)

Instructions: Choose the best answer for each of the following 10 questions. Each question is worth 2 points. There is no penalty for guessing, so be sure to answer all questions.

If you believe that one of the multiple-choice questions is defective, you may write a short note explaining why, using the entry tab for the first essay question in EBB and writing your note before beginning your answer for the essay question. If you do so, be sure to still make a choice for that multiple-choice question, so that you can receive credit. (And note that any words you use to challenge a multiple-choice question in that way **will not** count toward the word limit for your essay answer—i.e., your essay answer will still get to be up to 800 words, not counting any words used to challenge a multiple-choice question.)

1. Plaintiff sues Defendant, in federal court, for the tort of intentional infliction of emotional distress. The federal court will be applying state tort law to the case. The relevant state's tort law, however, does not recognize the tort of intentional infliction of emotional distress. You represent Defendant, and you have just received Plaintiff's Complaint. What should you do?

- (A) File a motion seeking sanctions against Plaintiff's attorney under Rule 37 for making a frivolous legal argument.
- (B) File a motion for judgment as a matter of law under Rule 50.
- (C) File an Answer within the required 21 days, and then prepare for discovery.
- (D) File a motion to dismiss for failure to state a claim on which relief can be granted, per Rule 12(b)(6).
- (E) Immediately depose Plaintiff's lawyer, per Rule 30, to ask about their theory of the case.

2. Plaintiff sues Defendant in federal court. The case proceeds to a jury trial. A jury of 9 members is empaneled. Over the course of the trial, three jurors get sick and are excused. At the end of the trial, the 6-member jury deliberates, and then they enter a verdict in favor of the Plaintiff, 5 jurors voting that Plaintiff wins, and 1 juror voting that Defendant wins. If Defendant argues that this is not sufficient to enter judgment against Defendant, is Defendant likely to win that argument?

- (A) Yes, because the Constitution requires a jury of 12, and this jury ultimately had 6.
- (B) Yes, because unless it is stipulated otherwise, the verdict must be unanimous, and there is no indication in the facts that Defendant stipulated to a non-unanimous verdict.
- (C) No, because unlike criminal juries, civil juries do not need to be unanimous.
- (D) No, because once the jury decides, the court can never enter a different judgment.
- (E) Both A and B.

3. Plaintiff sues Defendant in federal court. The local state law provides that a Summons may be served by “delivering a copy to the defendant personally.” After filing the Complaint, Plaintiff gets a Summons, with all of the proper information, signed and sealed by the court. Twelve days later, Plaintiff’s second cousin, who is 27 years old, takes a copy of the Summons and the Complaint to Defendant’s house, finds that the only person there is Defendant’s 5-year-old son, and leaves the Summons and Complaint with the 5-year-old. Defendant files a 12(b)(5) motion, arguing that there was insufficient service of process. Should the court grant the motion?

- (A) Yes, because Defendant was certainly not put on notice about the case, as required by the Due Process Clause.
- (B) Yes, because the service was likely insufficient under the Federal Rules.
- (C) Yes, because the only way to serve Defendant was under the state-law requirement for service, and the relevant state law required serving Defendant personally.
- (D) No, because the service complied with all of the requirements in the Federal Rules.
- (E) No, because the service met the Due Process Clause requirement for notice.

4. Pat sues Airline Corp. in federal court, alleging age discrimination in violation of federal law. Under the relevant federal law, an employer commits age discrimination if: (a) the plaintiff was over 40 and applied for the job, (b) the plaintiff was qualified for that job, and (c) the employer hired a different applicant who was equally or less qualified and was also younger than the plaintiff. The following is the relevant text of Pat’s Complaint:

1. Pat is 54 years old, and graduated from college in 1993.
2. Pat has worked as an airline pilot successfully for the last 25 years.
3. Six months ago, Pat applied for a job opening as an airline pilot at Airline Corp.
4. Five months ago, Airline Corp. hired Deb for that job position.
5. Two years ago, Deb created a LinkedIn profile, which states that Deb graduated from college in 1998 and that Deb has been an airline pilot for 10 years.
6. On information and belief, Deb is younger than Pat and is no more qualified than Pat for the airline pilot job.
7. Pat requests damages of at least \$40,000 in lost income.

Does Pat’s Complaint likely meet the plausibility standard?

- (A) Likely yes.
- (B) Likely no.

5. Drinks Co. makes two types of drinks, Soda Pop and Diet Soda Pop. Drinks Co. has a contract with Bottlers Co. to bottle its drinks. The contract specifies that the two companies will split all profits from bottled drinks that contain “Soda Pop Syrup.” Earlier this year, Bottlers Co. sued Drinks Co., alleging that Drinks Co. refused to split the profits from Diet Soda Pop.

In the litigation, Drinks Co. is taking the position that only Soda Pop contains the ingredients that the contract refers to as “Soda Pop Syrup,” meaning that the contract does not require splitting the profits from Diet Soda Pop. However, Drinks Co. has famously kept secret the ingredients for Soda Pop and Diet Soda Pop for nearly a century. Therefore, in the discovery phase of the lawsuit, Bottlers Co. seeks to discover the ingredients used in both Soda Pop and Diet Soda Pop, in order to determine if both drinks use Soda Pop Syrup. Unsurprisingly, Drinks Co. does not want to turn over its secret formula. Which of the following strategies is most likely to succeed for Drinks Co.?

- (A) Assert work product protection for the secret formula.
- (B) Assert attorney-client privilege for the secret formula.
- (C) Seek a protective order from the court to limit any revelations of trade secrets.
- (D) Object to Bottlers Co.’s discovery request as not relevant.
- (E) Seek discovery sanctions against Bottlers Co. on the ground that Bottlers Co. is requesting the secret formula for improper purposes.

6. Plaintiff sues Defendant, in federal court, for tort claims arising from a car crash. The Complaint was filed on February 5, 2025, and it alleged that “Early in the new year in 2023, Defendant drove a car that negligently hit Plaintiff’s car.” The relevant statute of limitations for torts is two years. Defendant’s Answer denies that Defendant caused the car crash, and also asserts the affirmative defense that the statute of limitations expired. During discovery, the following evidence emerged:

Witness A stated in a deposition: “Yeah, that car crash was on January 15, 2023. I remember because it’s my birthday, and that was a rough way to celebrate.”

Plaintiff stated in a deposition: “I clearly saw Defendant behind the wheel as the car hit mine.”

Defendant stated in a deposition: “I wasn’t even driving the car that day.”

No other relevant evidence emerged during discovery. Defendant moved for summary judgment. Should the court grant Defendant’s motion for summary judgment?

- (A) No, because Defendant has failed to offer evidence that Defendant did not cause the crash.
- (B) No, because Defendant has failed to offer evidence that the statute of limitations expired.
- (C) Yes, because Plaintiff has not produced evidence that Defendant caused the crash.
- (D) Yes, because Defendant has offered evidence that the statute of limitations expired, and Plaintiff has failed to offer evidence in response to show that the lawsuit was timely filed.

7. Plaintiff sued Defendant, in federal district court, for an intentional tort. Along with the Complaint (which did not contain Plaintiff's name, and was instead filed anonymously as "John Doe"), Plaintiff filed a motion asking the District Court to allow Plaintiff to proceed with the case anonymously. The District Court denied Plaintiff's motion, and then ordered Plaintiff to refile the Complaint using Plaintiff's name. Can Plaintiff immediately appeal the District Court's order that denied the motion to proceed anonymously and required Plaintiff to refile non-anonymously?

- (A) Likely no, because it is not a "final" order in the case.
- (B) Likely no, because courts never allow parties to litigate anonymously.
- (C) Likely yes, because the FRCP prioritizes the personal privacy of parties, so this is an appealable order.
- (D) Likely yes, because federal statutes and Supreme Court doctrine have adopted a policy of seeking to maximize the number of interlocutory appeals in any given case.
- (E) Likely yes, because this will most likely qualify as an appealable collateral order.

8. Plaintiff sued Defendant, in federal court. Ten days after receiving the Summons and Complaint, Defendant filed a 12(b)(6) motion to dismiss. The court considered that motion for some time, and after two months, the court denied Defendant's motion to dismiss. Thirty days after the court entered its order denying the motion to dismiss, Defendant filed their Answer. Was the Answer timely?

- (A) Yes.
- (B) No.

9. The federal Medicare system pays for healthcare for people over 65. Medicare was created by federal statute in 1965. In 2026, the following federal statute was passed:

§ 2255. Medicare Torts. If, in the course of providing federally-funded Medicare services, a medical services provider commits an intentional tort against their patient under the relevant local state law, that medical services provider shall also be liable for an intentional tort under federal law, including liability for monetary damages for any harms caused by the provider's tortious actions.

If a plaintiff sues a medical services provider for monetary damages under this statute, and brings the suit in federal court, does the plaintiff likely have a right to a jury trial?

- (A) Likely yes.
- (B) Likely no.

10. Plaintiff sues Defendant, in federal court, for breach of contract. Twelve days after being served with the Summons and Complaint, Defendant serves an Answer, in which Defendant denies liability. Then, ten days after serving the Answer, Defendant's lawyer realizes that they negligently failed to include the affirmative defense of statute of limitations in their Answer. What should Defendant's lawyer do?

- (A) Ask the court for leave to amend the Answer.
- (B) Ask Plaintiff to consent to amending the Answer.
- (C) Both A and B.
- (D) Amend the Answer as a matter of course.
- (E) None of the above—Defendant has definitively missed the chance to raise this defense.

END OF MULTIPLE CHOICE QUESTIONS—ESSAY QUESTION BEGINS ON THE FOLLOWING PAGE

Part II. Essay Question (20 points total)

Priya lives in the state of O'Quinn, and she owns a house with a large back yard. Next to the house is an empty 1-acre lot. Priya believes that the lot is part of her property. However, the lot is also bordered by three other properties, each with a house. Those three other properties are owned, respectively, by Ana, Bella, and Cora. Ana, Bella, and Cora also each claim to own the empty lot. In other words, four different people claim to own the lot. So Priya went to see a lawyer.

Priya's lawyer, Lola, recommended bringing a quiet title lawsuit, which would settle who owns the lot. Lola explained that in a quiet title lawsuit, the plaintiff sues all of the other potential owners of the property in one suit. Priya liked that plan. So Lola drafted a complaint and filed it in O'Quinn state court on September 1, 2025. The complaint named three defendants: Ana, Bella, and Cora.

On September 2, Lola secured three copies of a summons from the state court (the summons had all of the required information under the relevant state procedural law). The summons indicated that the court would hold the first hearing in the case on December 1, 2025. Lola also made copies of the complaint. And Lola wrote a cover letter to each of the three defendants, in which Lola said, "Please acknowledge receipt of this letter, the summons, and complaint by contacting my office to discuss potential settlement." Then Lola arranged to serve each defendant. Here is how:

On September 3, Lola sent a copy of the summons, complaint, and cover letter to Ana by certified mail. Certified mail requires the recipient to sign for it, and then a receipt with the signature is sent to the person who mailed the letter. When the letter arrived at Ana's house, however, Ana's older sister Maisie was sitting on the porch. Maisie was having a fight with Ana. So, to play a trick on Ana, Maisie told the mail carrier that she was Ana and signed for the certified letter. Maisie's signature was just an illegible scribble. Maisie never gave Ana the letter. On September 5, the mail delivery company gave Lola a copy of the receipt, with the illegible scribble on the signature line. Lola figured that it was Ana's signature, so assumed that Ana received the summons, complaint, and cover letter. Lola was never contacted by Ana to discuss potential settlement.

Next, on September 6, Lola sent a copy of the summons, complaint, and cover letter to Bella, by certified mail. However, Bella had moved to a new house (though she still owned her old one too). Therefore, the mail carrier was unable to deliver the certified letter, because no one was at Bella's old house to sign for it. On September 7, the mail carrier returned the letter to Lola, marked "Undeliverable—No One Home To Sign." Lola then googled Bella and found a new address associated with Bella's name on AddressFinder.com. On September 8, Lola sent the summons, complaint, and cover letter by regular mail to the new address (though she did not send a copy to the old address). Lola was never contacted by Bella to discuss potential settlement.

Finally, Lola prepared to serve Cora. Lola had not enjoyed the experience with certified mail. So, on September 9, Lola sent a copy of the summons, complaint, and cover letter, by regular mail, to Cora's address. Lola was never contacted by Cora to discuss potential settlement. However, on September 12, Lola and Priya both attended a town council meeting. During the meeting, Lola publicly announced that Priya had just filed a lawsuit against all of her neighbors to claim ownership of the empty lot. Lola also announced that the court hearing was set for December 1, and Lola said that if anyone believed they owned the lot, they should contact Lola to discuss potential settlement. Suddenly, Cora, who was also at the town council meeting, stood up, shook

her fist angrily, and shouted: “That’s my land, I can’t believe you’re suing me. I’ll see you in court!” Cora then stormed out of the town council meeting.

On November 29, Cora happened to see Ana and Bella at the grocery store. Cora complained that Priya was suing them all. Neither Ana nor Bella knew what Cora was talking about—it was the first time that either Ana or Bella had heard about the lawsuit. They both rushed to get lawyers. On December 1, as the court hearing got underway, the lawyers for each of Ana, Bella, and Cora argued that each of their clients, individually, had not received sufficient notice to comport with Due Process. (You may assume that under O’Quinn state procedural law, this was the right time and manner to raise the argument that notice was insufficient.)

Question: You are a law clerk for the judge who is hearing the case. Your judge asks you to write an objective memo, in IRAC form, **assessing whether each defendant received constitutionally sufficient notice.** (Your judge notes that each defendant has their own Due Process rights, so you should analyze the facts to assess whether each defendant had constitutionally sufficient notice.) Your judge says the **word limit for your memo is 800 words.**

END OF EXAM